

25STCV20914 25STCV20914

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Case Number: 25STCV20914 Hearing Date: August 10, 2026 Dept: 406

ANDREA MORA ALCAUTER,

Plaintiff,

v.

CHUGH, LLP, et al.,

Defendants.

Case No.: 25STCV20914

Hearing Date: August 10, 2026

[TENTATIVE] order RE:

plaintiff andrea mora alcauter's motion to compel further deposition (CRS# 1936)

BACKGROUND

On July 15, 2025, Plaintiff Andrea Mora Alcauter filed this employment discrimination action against Chugh LLP and Navneet Chugh. Plaintiff alleges that she was harassed and discriminated against based on her national origin and disability. Plaintiff alleges that Defendants retaliated against her for reporting this misconduct and for reporting an immigration fraud scheme occurring within the company. Plaintiff alleges that she was compelled to resign due to the intolerable conditions.

On November 24, 2025, Chugh LLP and Navneet Chugh filed a cross-complaint against Alcauter. The cross-complaint alleges that Alcauter failed to perform her duties while working at Chugh LLP, fostered a negative workplace, misused company resources, and circulated a defamatory email upon her departure.

On June 22, 2026, Plaintiff filed the instant motion to compel the further deposition of Chugh LLP's PMQ. Chugh LLP filed an opposition on July 28, 2026. Plaintiff filed a reply on August 3, 2026.

LEGAL STANDARD

"If, after service of a deposition notice, a party to the action . . . without having served a valid objection under Section 2025.410, fails to appear for examination . . . or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document . . . described in the deposition notice." (Code Civ. Proc., § 2025.450(a).)

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480(a).) "If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition." (Id., § 2025.480(i).)

DISCUSSION

I. An Order Compelling the Deposition is Warranted

On May 5, 2026, Chugh LLP proposed a June 3, 2026 date for the deposition of its PMQ. (Silva-Guzman Decl. ¶ 11.) Chugh LLP further confirmed that this would be the PMQ deposition "for all the topics listed." (Id., ¶ 12.) On May 7, 2026, Plaintiff served a deposition notice for the deposition of Chugh LLP's PMQ. (Id., ¶ 13, Ex. C.)

On June 3, 2026, Defendant Navneet Chugh appeared for deposition as Chugh LLP's PMQ. The record of the deposition reveals that Mr. Chugh was disruptive and uncooperative from the outset, constantly interrupting Plaintiff's counsel and refusing to answer basic questions. (See, generally, Silva-Guzman Decl., Ex. D.) Throughout the deposition, Mr. Chugh directed personal insults at Plaintiff and her counsel, repeatedly referring to Plaintiff as a "stupid client," attacking Plaintiff's counsel for taking on the case, and making comments such as "Get this out of your head, you woman. Something's wrong with you," "Do you know who you are talking to?" "Did you finish kindergarten?" "Did you go to law school?" among others. (Ibid.)

Mr. Chugh also admitted that he did "nothing" to prepare for the deposition, reviewed no documents, and did not speak to anyone at Chugh LLP. (Silva-Guzman Decl., Ex. D at 8:7-21.) Mr. Chugh then stated that he was "not capable" of answering questions. (Id. at 16:1-6.) After further unsuccessful attempts at questioning, Plaintiff's counsel suspended the deposition. (Id. at 26:8-17.)

The record shows that an order compelling the further deposition of a qualified PMQ is warranted. Chugh LLP argues that it duly produced a PMQ and that Plaintiff cannot obtain an order simply because she decided to suspend the deposition before attempting to address the topics from the deposition notice. Chugh LLP contends that the Code provides no relief where the deponent did not fail to answer any specific substantive question.

This argument ignores Mr. Chugh's clear disruptive conduct throughout the deposition and his admissions that he did "nothing" to prepare and was "not capable" of answering questions. Chugh LLP offers no contrary record of the deposition. Chugh LLP cites no authority precluding a deposing party under such circumstances from suspending the deposition and seeking court intervention.

Chugh LLP acknowledges that Code of Civil Procedure sections 2025.450 and 2025.480 apply if “Defendants failed to appear for deposition, failed to proceed with the examination, or improperly refused to answer discoverable questions.” (Opp. 10:10-13.) That is precisely what occurred here. The record clearly reveals that Mr. Chugh was disruptive and uncooperative, and even admitted that he was unprepared. Mr. Chugh himself threatened to end the deposition: “Are you going to let me finish? I’m going to stop the deposition right now . . . Yes, I can. Turn the damn thing off.” (Silva-Guzman Decl., Ex. D at 24:6-10.) This readily constitutes a refusal to proceed with the examination and a refusal to answer discovery. It would be absurd under these circumstances to require Plaintiff to go through every substantive question. Therefore, Plaintiff has established a basis for relief.

II. Chugh LLP’s Objections Do Not Preclude the Deposition

Chugh LLP argues that it asserted timely and valid objections to the deposition notice and that the topics on the notice are not stated with “reasonable particularity.” (See Code Civ. Proc., § 2025.230.) A review of Chugh LLP’s own separate statement belies this position. Each topic at issue is reasonably particularized and sufficiently enables Chugh LLP to designate the appropriate PMQ(s).

Chugh LLP’s objections do not otherwise prevent a deposition from proceeding, nor do they justify striking any topic entirely. The topics are facially proper, and Chugh LLP retains the ability to object to specific questions at the deposition.

III. Chugh LLP Must Designate a Competent PMQ

Chugh LLP argues that Plaintiff is not entitled to relief merely because she is unsatisfied with the deponent’s level of preparation and that one PMQ cannot be expected to bear all relevant knowledge. However, Plaintiff has never suggested that Mr. Chugh is required to be the PMQ for all topics, that Mr. Chugh must be able to answer every single question, or that Chugh LLP may not designate more than one PMQ.

Chugh LLP itself confirmed with Plaintiff that the June 3 deposition would be “for all the topics listed.” (Silva-Guzman Decl. ¶ 12.) Yet, Chugh LLP only produced Mr. Chugh, who admitted that he did nothing to prepare for the deposition and that he was not capable of answering questions. This is hardly the “reasonable preparation” that Chugh LLP acknowledges is required by law. (See Opp. at 14:25-27.) Chugh LLP must produce one or more PMQs who are “most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.” (See Code Civ. Proc., § 2025.230.)

To the extent Mr. Chugh is not the PMQ for all topics, there is no indication that Chugh LLP informed Plaintiff of this or identified which topics he was qualified to testify to. Chugh LLP cannot commit to producing a PMQ “for all the topics listed” and then fault Plaintiff for expecting precisely that.

IV. Sanctions are Warranted

Mr. Chugh’s conduct at the June 3 deposition was completely unacceptable and readily constitutes discovery abuse. The Court is particularly concerned with the level of incivility exhibited by Mr. Chugh, who is himself an attorney and officer of the court. In its opposition, Chugh LLP not once addresses the deposition transcript or Mr. Chugh’s conduct. Chugh LLP’s version of events—that it duly produced a competent PMQ and that Plaintiff is the one who refused to proceed—is wholly unsupported by the record. Based on the facts discussed herein, the Court finds that Chugh LLP engaged in discovery abuse, refused to participate in a proper method of discovery, and opposed this motion without substantial justification.

Monetary sanctions are warranted. Plaintiff requests \$11,187.50 for 17.9 hours at a rate of \$625. (Silva-Guzman Decl. ¶¶ 31-33.) The Court finds that Plaintiff’s counsel reasonably spent 8 hours in relation to the motion. The Court finds that counsel’s reasonable hourly rate is \$550. Plaintiff reasonably incurred \$1,612.08 in costs for the deposition. (Id., ¶ 34, Ex. F.) Therefore, the Court awards a total of \$6,012.08.

CONCLUSION

Plaintiff's motion to compel further deposition is GRANTED. Chugh LLP shall produce competent PMQ(s) for all topics. The Court sanctions Chugh LLP and its counsel, jointly and severally, in the amount of \$6,012.08, to be paid within 30 days of today.

ANDREA MORA ALCAUTER,

Plaintiff,

v.

CHUGH, LLP, et al.,

Defendants.

Case No.: 25STCV20914

Hearing Date: August 10, 2026

[TENTATIVE]

order RE:

plaintiff andrea mora alcauter's motions

to compel further responses (CRS# 0229, 7796, 8259)

BACKGROUND

On July 15, 2025, Plaintiff Andrea

Mora Alcauter filed this employment discrimination action against Chugh LLP and

Navneet Chugh. Plaintiff alleges that she was harassed and discriminated

against based on her national origin and disability. Plaintiff alleges that

Defendants retaliated against her for reporting this misconduct and for

reporting an immigration fraud scheme occurring within the company. Plaintiff

alleges that she was compelled to resign due to the intolerable conditions.

On November 24, 2025, Chugh LLP and

Navneet Chugh filed a cross-complaint against Alcauter. The cross-complaint

alleges that Alcauter failed to perform her duties while working at Chugh LLP,

fostered a negative workplace, misused company resources, and circulated a

defamatory email upon her departure.

On June 26, 2026, Alcauter filed the

instant four motions to compel Defendants' further responses to discovery. Defendants

filed oppositions on July 28, 2026. Plaintiff filed replies on August 3, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery

requests, the propounding party may move for an order compelling further

responses if the responses are incomplete or evasive, or objections are without

merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a),

2033.290(a).)

A party "is entitled to demand answers to

its interrogatories, as a matter of right . . . [and] the burden of justifying

any objection and failure to respond remains at all times with the party

resisting an interrogatory." (Williams v. Sup. Ct. (2017) 3 Cal.5th 531,

541.) By contrast, the party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

MEET AND CONFER

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., §§ 2030.300(b)(1), 2031.310(b), 2033.290(b).) The Court finds that Plaintiff has satisfied the meet and confer requirement. (See Silva-Guzman Decl.)

DISCUSSION

I.

Requests for Production, Set Two (CRS# 0229)

A statement of compliance or inability to

comply must be made as follows:

A statement that

the party to whom a demand for inspection, copying, testing, or sampling has

been directed will comply with the particular demand shall state that the

production, inspection, copying, testing, or sampling, and related activity

demand, will be allowed either in whole or in part, and that all documents or

things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.

(Code

Civ. Proc., § 2031.220.)

A representation

of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(Code

Civ. Proc., § 2031.230.)

Defendants are entitled to object

and then provide a substantive response. However, Defendants' responses do not

contain proper statements of compliance or inability to comply. Where Defendants intended to produce documents, they simply stated, “responsive documents include” and then listed bates numbers. This fails to specify whether Defendants are complying in whole or in part, and fails to confirm that all documents not subject to an objection will be produced. Where Defendants were unable to produce documents, they simply stated, “no further [documents] were located.”

This fails to confirm that a reasonable inquiry was made, explain the reason for noncompliance (lost, misplaced, destroyed, etc.), or identify the individual or organization believed to be in possession.

The Court agrees that Plaintiff’s

skepticism as to the completeness of the production is not a reason to compel a further response. However, Defendants must still provide written responses that comply with the Code, as set forth above. Lastly, Defendants shall provide a privilege log for any documents withheld based on a claim of privilege. (See

Code Civ. Proc., § 2031.240(c)(1).)

The motion is GRANTED as to RFP Nos.

63, 64, 69, 70, 71, 72, 73, 75, 77, and 80.

II.

Special Interrogatories, Set Two (CRS# 7796)

a. SROG No. 28

SROG No. 28 asks Defendants to

“identify” the person who made the decision to hire Plaintiff. “Identify” is

defined in the SROGs to mean a person’s name, contact information, employer,

and job title. However, Defendants merely responded that “Plaintiff was hired

through a process involving management personnel, including but not limited to

individuals in supervisory and managerial roles at the time of hire.” This is

nonresponsive. Defendant must actually identify the individuals as requested by

the SROG.

The motion is GRANTED as to SROG No.

28.

b. SROG No. 30

SROG No. 30 asks Defendants to “DESCRIBE

the typical process by which work assignments or case matters were assigned to

PLAINTIFF.” The SROG does not define what “typical process” means and is

therefore ambiguous as to the information being sought. Defendants responded to

the extent possible by stating that “Work assignments were generally

distributed by supervisory personnel, including office management, based on

workload, case type, client needs, and operational priorities. Assignments

could be modified based on availability, urgency, and business considerations.”

This is a responsive answer. If Plaintiff seeks specific information, she

should propound an interrogatory to that effect.

The motion is DENIED as to SROG No.

30.

c. SROG No. 41

SROG No. 41 asks Defendants to “Identify

each compensation decision affecting PLAINTIFF in which ELVIRA PADERNAL

participated from 2019 to 2025.” Defendant responded that “Elvira Padernal

participated in certain compensation-related discussions or administrative

processes involving employees, including Plaintiff, within the scope of her

role.” This is nonresponsive. The SROG does not merely ask Defendants to

confirm Padernal's involvement, but to actually identify each instance.

The motion is GRANTED as to SROG No.

41.

d. SROG No. 42

SROG No. 41 asks Defendants to “Identify

all COMMUNICATIONS between ELVIRA PADERNAL and any PERSON regarding PLAINTIFF's

compensation, bonuses, or incentives from 2019 to 2025.” Defendants responded

that “Responsive communications, if any, are contained within documents

produced or to be produced in this action.” This is nonresponsive, as the SROG

asks for identification of the documents, not a vague representation that

documents might exist somewhere in an unidentified production. While Plaintiff can seek actual production through a request for production, Defendants cite no authority precluding Plaintiff from seeking identification of documents in an interrogatory. For example, standardized form interrogatories routinely ask for identification of supporting documents on a range of topics.

The motion is GRANTED as to SROG No.

42.

e. SROG No. 46

SROG No. 46 asks Defendants to “Identify all instances from 2019 to 2025 where YOU considered terminating PLAINTIFF.”

The SROG does not define “considered,” making it vague what situation or event Plaintiff seeks information on. Defendants responded to the extent possible by stating that “Responding Party is not aware of any formal decision to terminate Plaintiff prior to Plaintiff resigning from her employment.”

The motion is DENIED as to SROG No.

46.

III.

Requests for Admission, Set Two (CRS# 8259)

a. Lack of Knowledge

The Code requires the responding party to

admit, deny, or claim lack of knowledge in response to each request for admission. (Code Civ. Proc., § 2033.220(b).) If the responding party claims lack of knowledge, “that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (Id., § 2033.220(c).)

In response to each RFA at issue, Defendants claimed a lack of knowledge but failed to provide the proper affirmation required by the Code. (See Code Civ. Proc., § 2033.220(c).) Therefore, further responses are required.

b. RFA No. 36

RFA No. 36 asks Defendants to admit that “NAVNEET CHUGH was informed of PLAINTIFF's July 24, 2024 HR complaint about Khushbu Shah's discriminatory comments.” Defendants responded that “Responding Party admits in part that Navneet Chugh was aware of that Plaintiff made a complaint but denies the scope and characterization of the request.”

Defendants are entitled to qualify their admission and specify the part that is denied. However, Defendants cannot vaguely deny “the scope and characterization” of the request. Defendants fail to specify which actual part of the RFA is untrue. Therefore, a further

response is required.

In sum, the motion is GRANTED as to

RFA Nos. 36, 37, 42, 43, 44, 47, and 48.

CONCLUSION

Plaintiff's motions to compel

further responses are GRANTED in part as set forth above. Defendants shall

provide further responses within 20 days of today. The Court sanctions

Defendants and their counsel, jointly and severally, in the amount of \$1,500,

to be paid within 30 days of today.